

Mutual Nondisclosure And Confidentiality Agreement

This Mutual Nondisclosure and Confidentiality Agreement (the “Agreement”) is made and entered into as of September 24, 2026 by and between SimCap (“SimCap”) and Kevin Maust.

RECITALS:

A. Each party to this Agreement is the owner of certain proprietary and confidential information relating to its assets, business operations and financial condition; and

B. Each party desires to share information so that each party may evaluate a possible business transaction between them (the “Proposed Transaction”); and

C. In consideration of the Proposed Transaction, each party wishes to provide the other party with its Confidential Information (as hereinafter defined). The party receiving any Confidential Information hereunder shall be deemed to be the “Receiving Party,” and the party furnishing such Confidential Information shall be deemed to be the “Supplying Party.”

AGREEMENT:

In consideration of the disclosure of proprietary and confidential information by each party to the other party, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. **Confidential Information.** The “Confidential Information” of Supplying Party means any and all information provided about Supplying Party, including, but not limited to, financial statements and information, books, records, contracts, documents, agreements, intellectual property (including software code, information regarding patents and trade secrets), correspondence, governmental filings, customer information, methods of doing business, marketing, supply, supplier information, and correspondence and any other information regarding its current or proposed officers, directors, employees or advisors, its assets, income or financial status, or its marketing plans, proposed strategic or financial relationships or business plans furnished to Receiving Party by Supplying Party, in whatever form, including any and all (i) writings, magnetic recordings and other tangible media and (ii) all information and data contained therein or in verbal communications, received or obtained from Supplying Party and any and all summaries, memoranda or other written or recorded (in any manner) studies and data created by Supplying Party, and/or its agents or employees relating to the Confidential Information, but excluding any such information (i) generally known to the public or a matter of public record which became publicly known otherwise than through an act or omission of Receiving Party, (ii) known to

Receiving Party prior to its receipt from Supplying Party, or (iii) provided to Receiving Party by a third party without obligation of confidentiality.

2. Confidentiality Obligations.

(a) The Receiving Party hereby agrees that the Confidential Information will be used solely for the purpose of evaluating the Proposed Transaction, and that such information will be kept confidential by the Receiving Party as provided in this Agreement; provided, however, that (i) any such information may be disclosed to the Receiving Party's executive officers and its counsel and accountants and (ii) such other officers, agents, and employees of Receiving Party and its lenders or proposed lenders who are bound to maintain such confidentiality by an existing agreement with Receiving Party or who agree to be bound by the terms of this Agreement by delivering to Supplying Party a written agreement consenting to be bound hereby (collectively, the "Authorized Parties"). The Confidential Information shall be treated by the Receiving Party and the Authorized Parties with no less than the degree of care and discretion to avoid disclosure, publication or dissemination as the Receiving Party treats its own confidential information. Neither the Receiving Party nor Authorized Parties shall take or omit to take any action which shall have the effect of circumventing the Receiving Party's obligations hereunder or shall use any Confidential Information to compete with the Supplying Party or for personal benefit or for any purpose other than evaluating the Proposed Transaction.

(b) In the event that either party or any of its employees or agents become legally compelled (by deposition, interrogatory, request of documents, subpoena, civil investigative demand or similar process) to disclose any of the Confidential Information of the other party, that party or person from whom such information is being sought shall provide the other party with prompt prior written notice of such requirement so that the other party may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Agreement. In the event that such protective order or other remedy is not obtained, or that the other party waives compliance with the provisions hereof, the party and its employees and agents agree to furnish only that portion of the Confidential Information of the other party which is legally required to be furnished.

(c) In addition, each party agrees that it will not (and will direct the Authorized Parties not to) disclose (i) to any person either the fact that discussions or negotiations are taking place concerning one or more possible transactions between the parties or (ii) any of the terms, conditions or other facts with respect to any such possible transactions, including the status thereof.

3. Redelivery. In the event that the parties do not enter into definitive documentation regarding the Proposed Transaction within six (6) months after the date hereof or upon either party terminating negotiations regarding the Proposed Transaction, the Receiving Party shall, at the request of the Supplying Party, (a) redeliver to the Supplying Party all Confidential Information obtained from the Supplying Party and any other written material containing or reflecting any information in the Confidential

Information (whether prepared by the Supplying Party, the Authorized Parties or otherwise), and (b) not retain any copies, extracts or other reproductions, in whole or in part, of any such material. The Receiving Party agrees to destroy all documents, memoranda, notes and other writings whatsoever prepared by the Receiving Party or the Authorized Parties based on the information contained in the Confidential Information (except for any references or summaries appearing in minutes or corporate records), and to have an authorized officer certify in writing to the Supplying Party that such destruction has been completed, provided that to the extent computer back-up procedures create copies of the Confidential Information, the Receiving Party may retain such copies in its archival or back-up computer storage for the period it normally archives backed-up computer records, provided that such electronic back-ups shall not be retrieved, used or consulted.

4. Equitable Remedies. The Receiving Party acknowledges and agrees that any unauthorized disclosure of the Confidential Information received by it will cause the Supplying Party irreparable harm for which remedies at law are inadequate. Therefore, if any obligations of, or agreements made in this Agreement by, the Receiving Party are breached, without limiting any other remedy available at law or in equity, the Supplying Party shall be entitled to an injunction, specific performance or other form of equitable relief, or any combination thereof. Additionally, in the event of a breach by the Receiving Party, the Supplying Party shall be entitled to recover the costs of enforcing this Agreement including, without limitation, reasonable attorneys' fees.

5. Nonsolicitation. Neither party shall solicit employees of the other disclosed in, or using, any Confidential Information supplied hereunder, other than in the ordinary course of solicitations made by a party to the public or industry generally, and a party shall not be prohibited from employing or engaging any personnel who contact such party on their own initiative without any prohibited solicitation

6. Term. The term of this Agreement shall commence on the date first set forth above and shall continue in full force and effect for a period of two (2) years thereafter. Except as otherwise provided in this Agreement, each covenant and agreement contained herein shall remain in full force and effect for the entire term of this Agreement.

7. No Obligation to Proceed. Nothing contained in this Agreement shall imply any obligation of either party to proceed with the Proposed Transaction or any other transaction between the parties, and each party reserves the right to terminate the discussions contemplated hereunder, with or without cause, without liability for such termination.

8. Waiver. The parties acknowledge and agree that no failure or delay by the Supplying Party in exercising any right, power or privilege hereunder shall operate as a waiver of such right, power or privilege, nor shall any single or partial exercise thereof preclude any other or further exercise of such right, power or privilege or of any other right, power or privilege.

9. Assignment. Neither this Agreement, nor the benefit of any of the covenants contained in this Agreement, shall be assignable by either of the parties hereto without the prior written consent of the other party, which consent shall not be unreasonably withheld, conditioned or delayed. This Agreement shall inure to the benefit of, and shall be binding upon, the successors of each of the parties.

10. Governing Law; Jurisdiction and Venue. This Agreement shall be governed by and construed in accordance with the laws of California without regard to conflict of laws principles. Any claim or action arising out of or in connection with this Agreement must be brought in a court of appropriate jurisdiction in Los Angeles County in the State of California and both sides submit to the jurisdiction of those courts and consent to venue in those courts for any such claims or actions.

11. Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof, and supersedes all prior and contemporaneous negotiations, discussions and understandings of the parties, whether oral or written.

12. Enforceability. Should any provision of this Agreement be determined to be void, invalid or otherwise unenforceable by any court or tribunal of competent jurisdiction, such determination shall not affect the remaining provisions hereof, which shall remain in full force and effect.

13. Waiver. No waiver or modification of any of the provisions of this Agreement shall be valid unless in writing and signed by both of the parties.

14. Counterparts. This Agreement may be executed in two or more counterparts, each of which when so executed and delivered shall be deemed an original, and such counterparts together shall constitute only one instrument.

[Signature Page Follows]

The undersigned have executed this Agreement as of the date first above indicated to witness their agreement to the terms hereof.

SIMCAP

By:

Graham Dee, Founder

KEVIN MAUST
